

HEADNOTE

“When assessing urgency, it is relevant when the applicant was able to physically obtain and examine the potentially infringing product, provided that the applicant was not able, on the basis of other information obtained earlier, such as drawings, to determine with sufficient certainty whether the potentially infringing product infringes the patent in suit.”

COURT

Local Division in Hamburg

PATENT

EP 2 615 984 B1

KEYWORDS

Urgency

PROCEEDINGS

Application for provisional measures

POWER CONTROL

ARRANGEMENTS FOR SURGICAL
INSTRUMENTS AND BATTERIES

SUMMARY

The Local Division in Hamburg ruled on an application for provisional measures. The patent at issue relates to power control arrangements for surgical instruments and batteries. According to the headnotes of the decision, when assessing whether the situation is urgent enough to grant provisional measures, courts may consider the moment when an applicant was able to physically obtain and examine a potentially infringing product, particularly where the applicant could not have determined infringement with sufficient certainty from earlier information such as drawings alone.